

150MIGD UMM AL QUWAIN INDEPENDENT
WATER PROJECT in UAE
阿联酋乌姆盖万 150MiGD 海水淡化项目

Tender Document of Marine work
海工工程招标文件

Section 2. Instruction to Bidder 第 2 章：投标人须知

No.: 012118.14.IQ.19.0003

China Energy Engineering Group Guangdong Power Engineering
Co., Ltd Dubai Branch

December 10, 2019

Contents 目录

1. General Provisions 总则	43
2. Tender document 招标文件	5
3. Requirement of Bidder's Bid 投标报价	67
4. Bidding Document 投标文件	9
5. Bidding evaluation rules 评标细则	1648
6. Contract Award 定标及授予合同	2122
7. Re-bid 重新招标	2224
8. Discipline and Supervise 纪律与监督	2324

Tender Document of EPC (Engineering, Procurement and Construction) for Marine work

海工EPC工程招标文件

编号/No.: 012118.04.IQ.19.0003

Section 2. Instruction to Bidder 第 2 章：投标人须知

Pre-Schedule of Instructions to Bidders 投标人须知前附表

序号 No.	条款号 Article	事项名称 Item	内容及说明 Content and description
1		招标方 Tenderer	中国能源建设集团广东火电工程有限公司迪拜分公司（以下简称招标方）China Energy Engineering Group Guangdong Power Engineering Co., Ltd Dubai Branch(hereinafter referred to as "the Tenderer" or "Party A")
2		工程名称 Engineering name	Subcontract of - <u>Marine work</u> 海工分包工程
3		工程地点 Project location	The Plant will be located to the north of the Emirates Modern Industrial area in the Emirate of Um Al Quwain, adjacent to the border with Ras Al Khaimah, approximately 20 km north of the city of Um Al Quwain and in the vicinity of the coastline of the Arabian Gulf (the "Site"). 位于阿联酋北部城市乌姆盖万工业开发区，距离乌姆盖万市中心约 20km，靠近阿拉伯湾，毗邻哈伊马角市。
4		工程规模及特征 Project scale and characteristics	UMMAL QUWAIN INDEPENDENT WATER 150 MIGD PROJECT 工程名称：阿联酋乌姆盖万 150MIGD 海水淡化项目。
5		计划工期 Planned duration	<u>291</u> days /天
6		质量标准 quality standard	详见合同条款 Please refer to the Contract Conditions for details
7		安健环要求 Requirements for Safety, Health and Environment	详见合同条款 Please refer to the Contract Conditions for details
8		招标范围及内容 Scope and Content of bidding	详见合同条款 Please refer to the Contract Conditions for details
9		合同形式 contract form	详见合同条款 Please refer to the Contract Conditions for details

序号 No.	条款号 Article	事项名称 Item	内容及说明 Content and description
10		资格要求与合格条件 Qualification requirements and qualification conditions	详见招标文件 Please refer to the Tender for details
11		是否接受联合体投标 Whether to accept the joint venture bid	■不接受 Do not accept
12		发标时间 Issuing time	2019 年 12 月 日以中国能建电子采购平台发布为准 Dec , 2019 subject to the notification of Energy China Electronic procurement platform
13		发标地点 Bid location	中国能建电子采购平台 Energy China Electronic procurement platform
14		截标时间 Deadline of Bidding document Submission	2019 年 12 月 日以中国能建电子采购平台发布为准 Dec , 2019 subject to the release of Energy China Electronic procurement platform
15		投标有效期 Bid validity	开标后 120 天 120 days after bid opening
16		投标保证金 Bid Bond	投标保证金的金额: AED 105,000 或人民币 200,000 元 Amount of bid security: AED 105,000 or CNY 200,000 投标保证金的退还: 中标单位在提交合同履行保函后退还, 未中标单位在招标结果审批完 1 个月内退还。 Return of bid security: the successful Bidder shall return the bid security after submitting the contract performance security, and the unsuccessful Bidder shall return the bid security within one month after the approval of the bidding results. 投标保证金的形式: 银行转账/银行保函。 Form of bid bond: bank transfer / bank guarantee. 转账的投标保证金应在投标截止日前到达招标方指定的以下账号: The transferred bid security shall reach the following account designated by the Tenderer before the bid deadline: 1) Bank Account 1# 开户名 Name of Account Opening 中国能源建设集团广东火电工程有限公司 开户行 Bank Account: 中国民生银行广州新城支行 账号 Account Number: 9902000695071126 2) Bank Account 2#: 开户名 Account Name: China Energy Engineering Group Guangdong Power Engineering Co., Ltd. Bubai Branch 中国能源建设

Formatted Table

序号 No.	条款号 Article	事项名称 Item	内容及说明 Content and description		
			集团广东火电工程有限公司迪拜分公司 开户行 Bank: HSBC Bank Middle East Limited 账号 Account Number: 026-566380-001		
17		履约保证 Performance guarantee	合同价 10%的银行履约保函。 Performance guarantee:10% of the contract price.		
18		投标文件 Bidding Documents	投标文件上传至中能建招标采购平台, 投标文件应包含: 1、电子签章 (或经签字盖章后的扫描版) 投标文件 (含商务标、技术标、价格标三部分); 2、可编辑版的价格标。The Bidding Documents shall be uploaded to the online bidding system, and shall include: 1. Electronic signature (or scanned version after signature and seal) of the Bidding Documents (including commercial bid, technical bid and price bid); 2. soft copy (word file or excel file) of the price bid.		
19		投标货币 Tender currency	USD 美元		
20		联系方式 Contact information	施工现 场	技术标: 黄志光 Technical proposal: Huang zhiguang	电话 Tel: +971 55315 8965
			project site	商务标: 王松波 Commercial proposal: Wang Songbo	电话 Tel: +971 52 3672 889
			招标中心联系人 Contact person of bidding Center:		电话: Tel

1. General Provisions 总则

1.1 Background :Please refer to Section 1: Invitation for Tender

概况：参阅第 1 部分：投标邀请函

1.2 Scope of work: Please refer to Section 4: Technical Requirement

工作范围：参阅第 4 部分：技术要求

1.3 Bidder's qualification:Please refer to Section 1: Invitation for Tender

投标人资格要求：参阅第 1 部分：投标邀请函

1.4 Bidding method 招标方式

In this project, The Tender document shall be download in the On-line Bidding System, meanwhile, the Bidders shall upload his proposal into the On-line Bidding system, and the winner shall be selected according to the principle of fairness and justice.

本工程采用中能建电子采购平台邀请招标方式，按照公平、公正的原则，择优选定中标单位。

1.5 Party A will not accept any bid document base on Joint Venture or Consortium

招标方不接受联合体或联营体模式下的投标文件

1.6 Tendering Cost 投标费用：

Bidders shall bear all costs related to his Tender document, including but not limited to preparation, clarifications, cost of issuing bid security, and submission of tender document, etc.

投标人应自行承担与投标有关的费用，包括但不限于：准备费用，澄清费用，投标保函开具费用，提交投标的费用等。

1.7 Subcontracting :The Subcontractor shall not subcontracting the Subcontract or any part thereof or any benefit or interest therein or there under without the prior written consent of Party A. Any such purported subcontracting shall be null and void.

分包：未经甲方事先书面同意，乙方不得分包该合同或该合同的任何部分或其任何利益。任何此类分包均无效。

1.8 Site survey before bidding 现场踏勘

1.8.1 The Subcontractor will be deemed to have inspected and examined the Site and its surroundings and to have satisfied himself, before submitting his Bidding Document, as to the form and nature of the Site, the quantities and nature of the work necessary for the completion of the Works, and means of access to the Site, the accommodation he may require and in general shall himself obtain all necessary information as to risks, contingencies and all other circumstances which may influence or affect his Bid Proposal.

乙方将视为在提交投标方案之前已对现场及其环境进行检验审核并对其满意，内容包括：现场的组成和性质、完成该工程所必需的工程量及性质、进入现场的方式、其可能要求的住宿、其自身获取的关于风险、费用及可能影响其投标方案的其它情况的所有必要信息。

1.8.2 The Subcontractor will be deemed to have fully investigated, without any commitment on the Contractor, and made appropriate arrangements for the establishment of proper accommodation, outside the Site, of his work-force consistent with all local and Governmental Regulations in force.

乙方将视为已按照当地及政府的规定，进行充分调查并作出适当安排（无需业主的委托），以便在现场外面为其人员提供适当的住宿。

1.9 Pre- bid meeting: No pre-bid meeting will be applicable

投标预备会：无

1.10 Confidentiality 保密

All parties involved in the bidding shall keep confidential the business and technology in the Tender Documents and Bidding Documents. The violator shall bear legal responsibility for the consequences.

招投标参与各方均应对招标文件和投标文件中的商业和技术等秘密保密，违者应对由此造成的后果承担法律责任。

1.11 Language 语言

The Bidding Documents and the notices, letters and documents related to the bidding between the Tenderer and the Bidders shall be in Chinese or English.

投标文件及投标方与招标方之间有关投标的来往通知、函件和文件应使用中文或英文。

1.12 Unit of Bill of Quantity 计量单位

All measurements are made in the legal units of measurement of The People's Republic of China

所有计量均采用中华人民共和国法定计量单位。

1.13 Deviation 合同偏差

Any deviation between the bidder's proposal and the Tender document, Party B shall state in Annex 8 in Section 5. Otherwise, the Subcontractor's bidding document will be deemed to fully meet all the requirement of the tender document;

如投标人的投标文件与招标文件存在差异时，投标人应在第 5 章附录 8 中列明合同差异项。否则，视为投标人完全按照招标文件的要求报价。

2. Tender document 招标文件

2.1 Acquisition of Tender Documents: The Bidder, who has registered and successfully passed the qualification approval and received the invitation for Tender, shall log in to the on-line bidding system with his user name and password prior to _____ 2019 and download the Tender Documents.

招标文件的获取方式：已报名并通过资格审查或收到招标邀请的投标方，可于 2019 年 月 日，用其用户名和密码登录能建采购平台，下载招标文件。

2.2 The fee of tender document shall be CNY 1500 or AED 750, and it shall be paid to the account as mentioned in Section 1: Invitation for Tender

标书费 1500 元或 750 迪拉姆，支付至第 1 部分所描述的指定账号。

2.3 The Composition Of Tender Document 招标文件的构成

2.3.1 Section 1 Invitation for Tender 第 1 章：投标邀请函

2.3.2 Section 2 Instruction to Bidders 第 2 章：投标须知

2.3.3 Section 3 Conditions of Contract 第 3 章：合同条款

2.3.4 Section 4 Technical Requirement 第 4 章：技术要求

2.3.5 Section 5 Composition of Bidding Document 第 5 章：投标文件及其组成

2.4 Clarification of the Tender Document 招标的解释和澄清

2.4.1 The Bidder shall carefully review and fully understand all instructions, conditions, forms, terms, specifications and drawings (if any) in the Tender Document. The Bidder has no right to make any modification to the Tender Document.

投标单位应认真审阅全面理解招标文件中所有的须知、条件、格式、条款、规范和图纸。投标单位无权对招标文件作任何修改。

2.4.2 Any clarification on the Tender Documents, the bidders shall submit the clarification to the on-line bidding system. The Tenderer shall reply and clarify by the on-line bidding system, and send the reply to all the Bidders who purchases the Tender Document (the reply does not mention where

are the questions from).All clarifications on the Tender Documents shall be taken as amendments or revision of the Tender Documents.

投标方要求对招标文件进行澄清，应以书面形式在能建采购平台上传并通知招标方。招标方对招标文件所有的澄清将在能建采购平台予以答复，同时将答复在能建采购平台发给所有购买招标文件的投标方（答复中不指明问题的来源）。所有关于招标文件的澄清均作为招标文件的修改或补充。

2.4.3 Three days before the deadline of submission tender documents, bidders shall submit all clarification questions.

在截标前 3 天，投标人应提交完所有需澄清的问题。

2.5 Revision of Tender Documents 招标文件的修改

2.5.1 At any time before the deadline for submission of bids, for whatever reason, the Tenderer may, on its own initiative or after answering the clarification questions raised by the Tenderer modify the Tender Documents. If the time of sending the modification is less than 2 days from the deadline for submission of bids specified in the instructions to Bidders (Pre-Schedule), and the modification has a great impact on the preparation of Bidding Documents, the deadline for submission of bids will be extended accordingly.

在投标截止期前的任何时候，无论出于何种原因，招标方可主动地或在解答投标方提出的澄清问题后对招标文件进行修改。如果修改发出的时间距投标方须知（前附表）规定的投标截止时间不足 2 天，且修改内容对投标文件的编制有较大影响的，将相应延长投标截止时间。

2.5.2 The revision of the Tender Document will be notified on the On-line bidding system or notified to all Bidders in written form (including fax) and will be binding on them. The Bidder shall log in to the on-line bidding system in time to obtain the latest information of the bidding project, and the Bidder shall be responsible for all the consequences caused by the Bid failure to access, download, answer questions, change and modification of the Tender Documents on the platform for any reason.

招标文件的修改将在能建采购平台上公示通知，或以书面形式（包括传真）通知所有投标方，并对其具有约束力。投标方应适时登录平台获取招标项目最新信息，投标方因任何原因未上平台查阅、下载招标文件答疑、变更修改等信息，造成的一切后果投标方自行负责。

2.5.3 The legal force of the soft copy any document that upload to the on-line bidding system shall be same as the original ones

能建采购平台上传的电子版文件与原件具有同等法律效力。

3. Requirement of Bidder's Bid 投标报价

3.1 The Currency of the Bidders' quotation shall be USD

投标人在报价时，应使用美元作为货币单位；

3.2 The deadline of the proposal shall be December 2019,14:00PM (Dubai Time)

投标截止日期为 2019 年 12 月 日，下午 14:00（迪拜时间）

3.3 Three days before the deadline of submission tender documents, bidders shall submit all clarification questions.

在截标前 3 天，投标人应提交完所有需澄清的问题。

3.4 The valid period of Bidders' proposal shall be 120 (One hundred and Twenty) days

投标报价有效期为 120 天

3.5 After the bid evaluation,the bidder's bidding documents will not be turned back no matter the Bidders get the letter of award or not.

评标结束后，不论投标人中标与否，投标文件一律不予退还。

3.6 This quotation shall be fixed unit price (without 5% VAT in UAE) . The said fixed unit price shall include all the cost of execution this project including but not limited to:

本次报价采用固定综合单价（不含阿联酋境内的增值税）的报价方式，该固定综合单价包括实施本工程的所有费用，包括但不限于：

3.7 All taxes (except 5% VAT in UAE), fees and customs charge shall be incorporated in the contract price

除阿联酋境内 5% 增值税外，所有的税费，报关，清关费用均包括在合同价内

3.8 Cost of procurement, construction for the said Marine work

海工工程的采购，施工工作

3.9 The quotation of the project shall cover all expenses incurred by the Bidder on carrying out the procurement, construction preparation, construction, installation, commissioning (if any), completion and handover, quality warranty and other contents within the scope of contract, including but not limited to: direct expenses (including labor cost, material cost, cost of machinery and vehicle for carrying out the work, various construction measures cost, various construction increase cost, etc.), indirect expenses (All expenses that does not include in direct cost, including the mobilization and demobilization expenses of personnel and equipment, the expenses of temporary dormitory and temporary facilities at site the expenses of unloading, unloading, warehousing, storage and keeping of all equipment and materials provided by Party B at the site, reasonable management expenses, etc.), commissioning expenses (if any), coordination with single unit, subsystem commissioning and coordination with the whole set of start-up and test freight, equipment and materials provided by Party A(if any) and secondary and tertiary transfer Transportation cost, reasonable profit, various taxes and fees required to be paid by the state, safe and civilized construction cost , and corresponding risk cost (including risk lump sum cost, unforeseen cost, etc.), i.e. all costs are necessary to complete all works within the scope of this bidding required by the owner and the Contractor

本工程报价应为投标方完成承包范围内工程采购，施工准备、施工、安装、调试（如有）、竣工和移交、质量保修等内容而发生的各项应有费用，包括但不限于：直接费（包括人工费、材料费、机械使用费、各种施工措施费、各种施工增加费等）、间接费（未包括在直接费用中的所有费用，包括人员和设备的调遣费、现场生产和生活临时设施费、自供设备材料运至现场的卸车、卸船、仓储、保管和搬运费、合理的各项管理费用等）、调试费（如有）、配合单体、分系统调试及配合整套启动试运费（如有）、甲供设备材料领用及二、三次转运费用（如有），合理的利润、国家规定应缴纳的各种税费、安全文明施工费、以及相应的风险费（包含风险包干费，不可预见费等），即业主及发包方认为完成本次招标范围内所有工作所需的一切费用。

3.10 Labor cost (salary, overtime, insurance, labor insurance, various of allowance, income tax, air ticket, legal work visa, board and lodging, mobilization and demobilization of staffs);

人工费（为完成本工程所需的所有人员工资、加班加点、各种津贴、补助、保险以及劳保、个人所得税、机票、合法的工作签证、食宿、交通及人员进退场费等）；

3.11 Machinery cost (all of machinery cost required for the project, fuel, maintenance, mobilization and demobilization cost of machinery, operator fee, transportation fee, taxes, installation and dismantle fee of machinery and facilities).

机械费（为完成本工程所需的所有机械使用费、燃油、机械进退场费、机械维护保养费、机械操作人员的费用、运输费、税费及机械安拆费）；

3.12 Material cost: (all cost and taxes of main material, accessory material, transportation, storage charge, loading and unloading fee, revolving material and consumable material, test and examination cost for all the material required for accomplishing this project).

材料费（为完成本工程所需的所有主材费、辅材费、周转性材料费、材料运输费、仓储费、保管费、材料装卸费、消耗性材料费、材料的检验试验费，等所有材料费用及税费）；

- 3.13 Party B shall be responsible for unloading the the material provided by Party A to the nominated location at site
乙方应负责将所有甲供材料卸车至现场指定定点
- 3.14 Safety and civilized construction:
安全文明措施费用:
- 3.15 The subcontractor shall be responsible for all measure expenses, including but not limited to the temporary facilities, temporary supporting protection, temporary accesses, repair, rework and cleanup fee, other temporary protection fee, profit, taxes (except 5% VAT in UAE) for cooperating commissioning work, overhead, various working or construction permits fee, salary or price inflation, adjustment of policy, insurance and risk etc which possibly happen on the process of completing the work of this contract..
乙方应负责所有措施费用,包括但不限于:临时设施、施工措施费、临时支护费、施工临时道路费用、返工修复清理费用、配合本工程调试所发生的临时措施费、管理费用、利润、需缴纳的各种税金(除阿联酋境内5%的增值税外),各类施工许可证的办理费用、工资及物价上涨、政策性调整、保险、风险等完成本合同范围内工作可能发生的所有费用;
- 3.16 Cost of applying for NOC and all relative permits, cost of mobilization and demobilization , water and electricity consumable for construction work, cost of environmental protection measures, disposal of solid and liquid waste, etc
申请 NOC 及所有相关许可的费用,进退场费,施工用水用电的费用,环保措施费用,固体/液体废弃物弃置费用。
- 3.17 Unless otherwise specified in the Tender Document, Whether the risk expense is reflected in the quotation sheet or not, shall be deemed to have been included in the quotation as the following contents (include but not limited to):
除非招标文件中另有规定,风险费用无论在报价表中有无体现,均认为已包含在报价中应包括(但不限于)以下内容:
- 3.18 Unforeseen cost of construction measures and cost of measures taken to prevent general natural disasters.
不可预见的施工措施费,预防一般性自然灾害采取的措施费用。
- 3.19 the possible cost of work stoppage, idling, idle machines and tools, the increased cost of rushing back to the construction period due to the tight construction period, and the cost of secondary transfer on site.
可能造成的停工、窝工、机具闲置等损失费用,由于工期紧需要赶回工期增加的费用以及现场二次转运费用。
- 3.20 Increased costs due to risks such as changes in policies and market factors.
政策及市场因素变化等风险而增加的费用。
- 3.21 Unforeseen other expenses.
不可预见的其它费用。
- 3.22 Costs foreseen by experienced contractors.
有经验的承包商能预见的各项费用。
- 3.23 Prices quoted by Party B shall be fully inclusive of all charges covering off loading, transportation, insurance, equipment and materials onto the allocated site storage area.
报价包括装卸车,运输,保险,设备和材料的仓储费用;
- 3.24 The Bidder will be deemed to have satisfied himself before bidding as to the correctness and sufficiency of his Bid Proposal for the Works and of the prices shall, cover all his obligations under the Contract and all matters and things necessary for the proper completion of the Works.

投标人在进行投标之前，将被视为投标人已经完全了解合同的要求，并且价格应涵盖其在合同下的所有义务以及为正确完成招标文件中列及的所有工作内容。

3.25 The actual total price shall be calculated base on the actual BOQ approved by both Parties times the fixed unit price accordingly.

实际合同总价按照经双方确认后的实际工程量乘以固定综合单价来计算

3.26 The said fixed unit price shall not be adjusted due to any reason during the validity of the Contract.
固定综合单价在合同履行期内不因任何因素的变化而调整。

4. Bidding Document 投标文件

4.1 The Composition Of Tender Document 投标文件的构成

4.1.1 Commercial Proposal 商务标;

4.1.2 Price quotation 价格标

4.1.3 Technical Proposal 技术标;

4.1.4 Tender Guarantee or Tender Bond 投标保函或投标保证金

4.2 Sufficiency Of Bid Proposal 投标报价的充分性

4.1.1 The Subcontractor shall, by careful examination, satisfy himself in respect of all pertinent conditions which may in any manner bear upon performance of the Works, such as, but not limited to, the nature and location of the work to be performed, the character, quality and quantity of the materials which may be encountered or which may be available, the character of equipment and facilities needed preliminarily to and during prosecution of the Work, labour conditions, transport conditions, the general and local conditions and without being limited by the foregoing, as to any and all matters and conditions which can in any way affect the Work to be performed.

乙方应通过审慎调查确保有关工程执行的所有相关条件得到满足，包括但不限于：需执行的工程性质及位置、可能遇到或可用的材料特性、质量及数量、该工程预备期及执行期所需的设备设施特性、劳工状况、运输状况、总体及当地状况，以及（不限于前述内容）可影响该工程执行的所有事项及条件。

4.1.2 More specifically, the Subcontractor shall fully inform himself concerning all necessary particulars of soil and subsurface conditions at the Site, including earthquake factors. all of the foregoing factors and all other risks, conditions or other circumstances shall be included in the Bid Proposal. Therefore, no claim will be considered for costs or extensions of time based in whole or in part between the actual factors and requirements described above from those, which may have been anticipated by the Subcontractor.

具体来说，乙方应充分了解现场土壤及地下条件的所有详细情况，包括地震因素，对于上述所有因素及所有其它风险、情形或情况需要考虑的，应在投标方案中列明。因此，对于乙方可能出现的任何风险因素，不再根据实际情况增加费用或延长时间。

4.3 Counterparts of Bidding Documents: Bidding Documents shall be submitted in two counterparts with one original the cover of which shall clearly mark "Original" stamped by company seal. The certificate of authorized representative, Power of Attorney for such representative and Letter of Commitment shall be submitted together. The Party B to provide the tender documents at the same time, should have file electronic copies (The document using Word, The quotation forms using the Excel), U disk copy, separate packaging.

投标文件的份数：正本各 1 份正本和副本的封面上应清楚地标记“正本”的字样，并加盖公司公章；投标人提供上述投标文件同时，应有文件电子版壹份（文档采用 Word 格式，表格采用 Excel 格式），U 盘拷贝，单独封装。

- 4.4 Sealing up of Bidding Documents: the cover of sealed envelope for Bidding Documents shall specify the Bidding Works, Full Name of the Bidder, Bidder's Address and Postal Code, the Contact Person, Contact Phone Number. Please seal the envelope with sealing strip and place the signature of legal person (or his authorized representative) and rubber stamp over the junction of flap and envelope. The certificate of authorized representative, Power of Attorney for such representative and Letter of Commitment shall be submitted separately. The Tender documents which are not packaged in accordance with the above-mentioned requirements shall be deemed invalid.

投标文件的密封：外层信封应写明投标内容、投标人全称与地址、邮政编码、联系人、联系电话，封口处要加贴封密条并在骑缝处由法定代表人(或其授权代理人)签字，并加盖单位公章；法定代表人资格证明、投标人法定代表人授权书及承诺书不包装，但应同时单独递交；未按上述要求密封和加写标记的投标文件，作废处理。

4.5 Submission Address for Tender Document 投标文件的投递

- 4.5.1 The Bidder shall sign the Bid by the legal representative or authorized representative, then make stamps, and scan the his bidding document, then submit his bidding document to on-line bidding system prior to the deadline of bidding document. The original bidding document shall be sealed and submitted to Party A's office.

投标方应将投标文件需投标方法定代表人或其授权委托人签字并加盖投标人公司有效公章后扫描，在投标截止时间之前将完整的投标文件递交至中能建电子采购平台。原件密封后提交至招标人办公室。

- 4.5.2 The commercial proposal, quotation and technical proposal shall be uploaded separately according to the requirements as mentioned above.

投标文件的商务标、价格标及技术标分别按上述要求分开上传。

- 4.5.3 The soft copy of the bidding document shall mention the name of Bidder and name of Bidding document.

投标文件电子文档名称上应标明投标方及工程名称。

- 4.5.4 Address for Tender Document Delivery shall be Room 102, 1st floor of Honey Well building No. 2, Emaar Business Park, sheikh zayed road, Budai.

提交标书的地址：Room 102, 1st floor of Honey Well building No. 2, Emaar Business Park, sheikh zayed road, Budai.

4.6 Revision and withdrawal of Bid Documents 投标文件的修改和撤回

- 4.6.1 After submitting the Bidding Documents, the Bidder can revise the Bidding Documents and upload the Bidding Documents again before the deadline of bidding document submission. However, after the deadline for submission of bids, the bid documents cannot be revised or withdrawn due to any causes.

投标方在递交投标文件后，在规定的投标截止时间之前，可以对投标文件进行修改并重新上传其投标文件。但在投标截止时间后，不得以任何理由修改或撤回投标文件。

4.6.2 According to Clause 3.4 of this instructions, during the period between the deadline of bidding submission and the expiration date of bid validity specified in the Tender Document, the Bidder cannot withdraw the Bidding Document, otherwise his bid bond will be forfeited
根据本须知第 3.4 款规定，在投标截止时间与招标文件中规定的投标有效期终止日之间的这段时间内，投标方不能撤回投标文件，否则其投标保证金将被没收。

4.7 Bid bond 投标保证金

4.7.1 Each Bidder shall submit a tender guarantee or tender bond equal to AED 105,000 or CNY 200,000 or other equivalent currency to the Contractor as the bid Guarantee. The period of valid for the tender guarantee or tender bond shall be same as the validity period of the bidder's proposal. During this period, the Bidder shall not be allowed to withdraw the Proposal documents, otherwise Party A has the rights to confiscate the tendering bond;

所有投标人均应向招标人提交金额为阿联酋迪拉姆 105,000 或人民币 200,000 元或其他等额货币的投标保函或投标保证金。投标保函或投标保证金有效期与投标书提交有效期相同。在此期间，投标人不得撤回投标文件，否则招标人有权没收投标保函或投标保证金；

4.7.2 The Tenderer may stipulate that the bid bond shall be cash, check, bank draft, bank guarantee, etc, and the validity period of the bid security shall be the same as the validity period of the bidding document.

投标保证金可以是现金、支票、银行汇票、银行保函等方式，投标保证金有效期应与投标有效期一致。

4.7.3 The bid bond of the bidders who do not win the bid shall be refunded in one lump sum (without interest) within one month after the approval of the bidding results.

未中标单位的投标保证金退还，自招标结果审批完毕起 1 个月内一次性退还投标保证金（无息）。

4.7.4 The bid security of winner candidates at the first place and the second place shall be refunded in one time (no interest) within 3 months after the approval of the bidding results.

排名第一和第二的中标候选人的投标保证金退还，自招标结果审批完毕起 3 个月内一次性退还投标保证金（无息）。

4.7.5 The bid bond will not be returned in case of any case as following:

下列任何情况发生时，投标保证金将不予退还：

- ① The Bidder withdraws its bidding within the bid validity period stipulated in the Tender Document; 投标方在招标文件中规定的投标有效期内撤回投标；
- ② In order to win the bid, the Bidder provides false documents and work experience in the Bidding Documents 投标方在投标文件中提供虚假的文件和材料，意图骗取中标的；
- ③ A bidder collude with other Bidder(s); 经评标委员会判定为串标的各方
- ④ The successful Bidder fails to negotiate with Party A on Contract Conditions within 3 calendar days after receiving the letter of award and submit the performance bond or sign the contract agreement within the period specified in the instructions (20 days after the Bidder receives the Letter of award); 中标人未能在接到中标通知书后 3 个日历日内开始合同谈判并在本须知规定的期限（投标方收到中标通知书后 20 天）提交履约保证金或签订合同协议；
- ⑤ Other cases as mentioned in this Tender Document. 招标文件中其他规定。

4.8 Bid Opening 开标

4.8.1 Bid Opening by On-line Bidding system: the Tenderer will open bid at the time and place specified in the Pre-Schedule of Instructions to Bidders, and the bid opening shall be carried out in accordance with the following procedures:

中能建招标平台开标：招标方将于投标须知前附表规定的时间和地点开标，开标按照以下程序进行：

- ① Announce the discipline of Bid Opening;宣布开标纪律；
- ② The host of bid opening enters into the On-line Bidding system and then commence the bid opening procedure;招标主持人进入中能建电子采购平台招标大厅启动开标程序；
- ③ Bid Evaluation Committee sign the attendance record;评标委员签到；
- ④ Unlock the Bidding Documents.
解锁投标文件。
- ⑤ The bid opening include the technical proposal, commercial proposal, quotation, all of these bidding document shall be opened at the same time or separately if required。
开标方式分为：技术、商务、价格同时开标、或根据需要分段开标。
- ⑥ Bid Opening Procedure is over. 开标结束。

4.8.2 Bid Opening by off-line: The Tenderer will open the bids at the time and place as stipulated in the Pre-Schedule of Instructions to Bidders, and the bid opening shall be carried out in accordance with the following procedures:

线下开标：招标方将于投标须知前附表规定的时间和地点开标，开标按照以下程序进行：

- ① Announce the discipline of open tender;
宣布开标纪律；
- ② Announce the name of the Tenderer who submits the Bidding Document before the deadline of bidding submission .
公布在投标截止时间前递交投标文件的投标人名称
- ③ Announce the bidding opening person, bid price readout person, bid recorder, bid supervisor and other relevant personnel;
宣布开标人、唱标人、记录人、监标人等有关人员姓名；
- ④ Check the sealing of the Bidding Documents according to the instructions to Bidders, and the Tenderer shall announce the results of the verification publicly and the order of bid opening;
按投标人须知规定检查投标文件的密封情况，招标人当众宣布核查结果，并宣布投标文件开标顺序；
- ⑤ Open the bids in public according to bid opening sequence, announce the Bidder's name, modification (if any), quotation, discount conditions (if any), commitment on quality and duration (if any), whether there is bid security and other appropriate items . Record the bid opening results. However, the withdrawn Bidding Documents by qualified notification on withdrawal of bidding document shall not be opened.
按照宣布的开标顺序当众开标，公布有效投标的投标人名称、修改内容（如有）、投标报价、优惠条件（如有）、质量工期承诺（如有）、有无投标保证金以及招标人认为适当的其它内容，并记录开标结果。但按规定提交合格撤回通知的投标文件不予开封。
- ⑥ The Bidder's representative, the Tenderer's representative, the bid supervisor, the recorder and other relevant personnel shall sign in the bidding opening record.
投标人代表、招标人代表、监标人、记录人等有关人员在开标记录上签字确认。

⑦ Bid Opening Procedure is over. 开标结束

4.8.3 In order to meet the substantive requirement under the Tender document, the Bidder shall not revise or delete the deviation items after the bidding opening completed. Once one of the following cases occurs, bidder's tender document shall be deemed as an invalid bidding document :

开标之后，投标方不得要求通过修正或撤消不合规要求的偏离从而使其投标成为实质上响应的投标。发生下列情形之一的，视为无效投标：

- 1) The Tender Bond is not submitted.
未按招标文件中要求提供投标保证金；
- 2) The Tender documents is submitted after the Submission Deadline;

规定时间内未上传投标资料;

3) Bidder's Tender document without signature and stamp

投标文件无签字、盖章;

4) The Tender documents has violated the law in UAE.

投标文件违反阿联酋相关的法律或法规;

5) No power of attorney for the authorized representative.

授权人无委托;

6) A bidder collude with other Bidder(s);

投标人串通投标的;

7) The substantial contents of the tender document does not comply with the bidding document

未实质性响应招标文件的要求

8) Similarity of different tender document is very much

不同投标人的报价存在高度相似性的

9) Bidding beyond the business scope or qualification requirements;

超出经营范围或资质条件要求投标的;

10) The qualification documents and other key bidding contents are incomplete, illegible, illegible or not marked or signed in accordance with the bidding regulations;

资质证明文件等关键性投标内容不全,字迹模糊,难以辨认或未按招标规定标志或签署;

11) The performance experience does not meet the requirements of the Tender Documents;

业绩不满足招标文件要求的;

12) The completion period of the bidding document proposed by the Bidder exceeds the duration as stipulated in the Tender Document;

投标文件载明的招标项目完成期限超过招标文件规定的期限;

13) The bidding document does not meet the requirements of technical specifications and standards;

明显不符合技术规范、技术标准的要求;

14) The condition(s) or provision(s) proposed by the Bidder can not be acceptable in any case

投标文件附有招标方不能接受的条件;

15) In order to win the bid, the Bidder adopts unbalanced bid

为中标,采用不平衡报价

4.9 Bid Evaluation 评标

4.9.1 Evaluation Committee 评标委员会

During the period of bid evaluation, any entity or individual shall not illegally intervene in or influence the process and result of bid evaluation; the bid evaluation shall be carried on by the bid evaluation committee established by the Tenderer according to law, the members of bid evaluation committee shall be professional technical and commercial experts from the Party A or Party A's agent, name of the members of bid evaluation committee shall not be disclosed until notifying the winner of bid. Withdrawal of a member of bid evaluation committee shall be applicable in any case as follows:

评标期间,任何单位和个人不得非法干预或影响评标的过程和结果;评标由招标方依法组建的评标委员会负责,评标委员会由招标人或其委托的招标代理机构熟悉相关业务的代表,以及有关技术、经济等方面的专家组成,评标委员会成员名单在中标结果确定前保密;评标委员会成员有下列情形之一的,应当回避:

1) Someone who comes from discipline inspection or upstream authorities;

纪检人员或上级监督部门人员

- 2) Someone who has an economic interest relationship with the bidder and may affect the fair of bid elevation;
与投标方有经济利益关系，可能影响对投标公正评审的；
- 3) Having been subject to administrative or criminal punishment due to illegal acts in bidding, bid evaluation and other activities related to bidding and tendering;
曾因在招标、评标以及其他与招标投标有关活动中从事违法行为而受过行政处罚或刑事处罚的；
- 4) Someone who has other interests with the Bidder.
与投标方有其他利害关系。

4.9.2 Confidentiality of bid evaluation process 评标过程的保密

- 1) After the bid opening, until signing contract with the winner. all the relevant data, information for bid review, clarification, evaluation and comparison of bids, as well as the information about the award of the contract, the base price shall not be disclosed to the Bidders or any persons.
开标后，直到宣布授予中标人合同为止，凡属于审查、澄清、评价和比较投标的有关资料，和有关授予合同的信息，工程标底情况都不应向投标方或任何人泄露。
- 2) In the process of review, clarification, evaluation and comparison of Tender Documents and award of contract, any behavior of the Bidder that exerts influence on the Tenderer and the member(s) of the bid evaluation committee will result in the withdrawal of bid qualifications.
在投标文件的审查、澄清、评价和比较以及授予合同的过程中，投标方对招标方和评标委员会其他成员施加影响的任何行为，都将导致投标资格的取消。
- 3) Any illegal behaviors, such as complicity for bidding, bribe, Violation of bidding discipline, etc shall be forbidden. Provided any case herein occurs, the bidder's bid qualification will be withdrawn. What's more, his Bid bond shall be confiscated without consent of the bidder.
严禁投标方在招投标过程中采用任何手段进行串标、贿赂和违反招投标纪律的其他行为，如经发现均取消其投标资格，且其投标保证金将不予退还。

4.9.3 Clarification of Bidding Documents 投标文件的澄清

- 1) In order to carry on the bid review, bid evaluation and quotation comparison, the bid evaluation committee may request the Bidder individually to clarify his Bidding Documents. The request for clarification and the reply shall be made in written form or by on-line bidding system through clarification function. During the clarification, the bidder shall not revise the substantive content of the Bidding Document. However, the calculation errors as stipulated under clause 4.9.5 of the instructions shall not be applicable herein.
为了有助于投标文件的审查、评价与比较，评标委员会委员可以个别要求投标方澄清他的投标文件。有关澄清的要求与答复，应以书面形式或在中能建采购平台上通过质询等方式进行，但不允许更改投标报价和投标文件的实质性内容。但是按照本须知 4.9.5 条规定校核时发现的算术错误不在此列。

4.9.4 Review of Bidding Documents 投标文件的评审

- 1) In case of any invalid bidding document as mentioned in Clause 4.8.3, the said bidding document shall not enter into the Bid Evaluation procedure.
4.8.3 条中规定的任何无效投标，都不得进入评标程序
- 2) The Bidder shall ensure that the content of the soft copy of Bidding Documents uploaded in the on-line bidding system shall be same as the original one. The Tenderer will carry out the bid evaluation based on the said soft copy.
投标方应保证在能建采购平台上传的电子投标文件内容和纸质版投标文件内容一致，招标方以能建采

购平台上传的电子投标文件内容为准开展评标工作。

- 3) Substantially meeting the requirements of the Tender Document means there is no significant difference or reservation from the key provisions of the Tender Documents. The so-called significant difference or reservation refers to the significant impact on the bidding scope, quality standard and application of the project; or the significant restriction on the rights of the Tenderer and the responsibilities of the Bidder stipulated in the contract; and the correction of such significant difference or reservation will have an unfair impact on the competitive position of other Bidders who substantially meet the requirements of the Tender Document.

实质上响应的投标应该是与招标文件要求的关键性条文没有显著差异或保留的投标。所谓显著差异或保留是指对工程的招标范围、质量标准及运用产生重大影响；或者对合同中规定的招标方的权利及投标方的责任造成重大限制；而且纠正这种显著差异或保留，将会对其他实质上响应要求的投标方的竞争地位产生不公正的影响。

- 4) A bid with significant difference or reservation comparing with the key provisions required in the Tender Document will be considered as a significant deviation, which will lead to the rejection of its bid. Once the bid opening completed, no bidder shall revise or adjust or correct his bid deviation to make it agreeable with the requirement under the Tender Document.

对招标文件要求的关键性条文有显著差异或保留的投标，将被认为是重大偏差，将导致其投标否决，并且不允许通过修正或撤消其不符合要求的差异或保留，使之成为具有响应的投标书。

- 5) The bid evaluation committee may require the Bidder to make corrections for the irregular, inconsistent or irregular minor deviations (means will not lead to significant deviations) in the Bidding Documents. If the Bidder refuses to make the said corrections, the bid evaluation made by bid evaluation committee shall be adverse result, the evaluation criteria shall be referred to Party A's regulation.

- 6) may make a review on the minor deviations that are not conducive to the Bidder during the detailed review, and the quantitative standards shall be specified in the Tender Documents.

对于投标文件中不构成重大偏差的不正规、不一致或不规则等的微细偏差，评标委员会可以要求投标方进行补正，拒不补正的，在详细评审时可以对微细偏差作出不利于该投标方的评审，量化标准应当按照招标方的有关规定。

4.9.5 Correction of errors 错误的修正

- 1) The bid evaluation committee shall check the bidding documents which already meet the requirement of the Tender Document substantially to see whether there are calculation errors in calculation or accumulation. The principles for correcting the errors are as follows:

评标委员会对确定为实质上响应招标文件要求的投标文件的报价进行校核，看其是否有计算上或累计上的算术错误，修正错误的原则如下：

- 2) If the amount in figures is inconsistent with the amount in words, the amount in words shall prevail. 如果用数字表示的数额与用文字表示的数额不一致时，以文字数额为准。
- 3) When the subtotal price is different from that number calculating by unit price times quantities, the unit price shall prevail, unless the bid evaluation committee considers that the unit price has obvious misplacement of decimal point, in this case, the marked total price shall prevail and the unit price shall be modified.

当单价与工程量的乘积之和与合价不一致时，应以标出的单价为准，除非评标委员会认为单价有明显的小数点错位，此时应以标出合价为准，并修改单价。

- 4) For items with only propose unit price without total price, the total price shall be determined by multiplying the unit price quoted by the quantities provided in the Tender Document; for items with

only have total price and no unit price, the unit price shall be determined by dividing the total price by the quantities provided in the Tender Document.

对只填写单价，没有填写合价的项目，其合价按所报单价乘以招标文件提供的工程量确定；对只填写合价，没有填写单价的项目，其单价按合价除以招标文件提供的工程量确定。

- 5) In case of missing items without price, the highest price of sub items corresponding to other Bidders shall be referred to as the basis for correcting the quotation in the bid evaluation process.

于分项漏报价的情况，在评标过程中参考其它投标人对应的分项最高价作为修正报价的依据。

- 6) When the BOQ(bill of quantity) of sub-divisional works is less than that of the Tender Documents, the unit of BOQ is smaller than that of the Tender Documents or there are errors, the quantity or unit of the Tender Documents shall prevail, the unit price shall remain unchanged, and the total price shall be modified. When the quantity of sub-divisional works is more than the Tender Documents or the unit is larger than the Tender Documents, the BOQ, unit of BOQ, unit price and total price shall not be modified;

分项工程量比招标文件少、单位比招标文件小或错误时，以招标文件的工程量或单位为准，单价不变，修改合价。分项工程量比招标文件多或单位比招标文件大时，工程量、单位、综合单价及合价均不作修改；

- 7) No modification shall be made if the bidder adds some items.

分项项目增项的，不予修改。

- 8) The bid evaluation committee has the right to sort out and correct the unreasonable and unbalanced quotation.

对于报价不合理的不平衡报价，评标委员会有权对其报价进行梳理并纠正。

- 9) The above error correction clauses are only applicable to bid evaluation and shall not be taken as the basis for signing the contract. Before issuing letter of award, the Tenderer has the right to require the Bidder to adjust the quotation in the bid according to the above error correction methods. After being confirmed and agreed by the Bidder, the adjusted quotation will be binding to both parties. If the Bidder does not accept the revised bid price, its bid will be rejected, and the bid security will be confiscated without consent of the Bidder. Then the Tenderer has the rights to select other bidders. If there is any deviation after issuing letter of intent, the Bidder must correct the said deviation and then submit the right one with his signature and stamp. Otherwise, the Tenderer reserves the right of compensation against the Bidder.

以上错误修正条款仅适用于评标，不作为合同签订的依据，招标方在中标通知书发出之前，有权要求投标方按上述修改错误的方法，调整投标书中的报价。经投标方确认同意后，调整后的报价对投标方起约束作用。如果投标方不接受修正后的投标报价则其投标将被拒绝，其投标保证金将不予退还。招标方将按评标排序选择下一投标方。如果中标后发现偏差，投标方必须将更正后的纸质版投标文件给予替换，若拒不更换，造成经济损失，招标方保留对投标方的追偿权利。

5. Bidding evaluation rules 评标细则

- 5.1. In this project, the comprehensive base bid price is chosen as the benchmark bid evaluation method. The specific bid evaluation rules are as follows:

本工程选用以综合标底价作为评标基准价的评标办法，具体评标规则如下：

Price bid (full score 75 points) 价格标（满分为 75 分）：

- 1) The weight of the bid price shall be 75 points, Set the bid price as "A", set base bid price of the bid evaluation as "B", Set $i = A/B - 100\%$; set the score of the bid price as "C", So:

① if $0 \leq i \leq 5\%$, then $C = (100 - i \times 100) \times 75\%$;

② If $i > 5\%$, then $C = (100 - 5 - (i - 5) \times 100 \times 2) \times 75\%$;

- ③ If $-10\% \leq i \leq 0\%$, then $C = (100 - i \times (-100) \times 0.5) \times 75\%$;
 ④ If $i < -10\%$, then $C = (100 - 5 - (i + 10\%) \times (-100) \times 1) \times 75\%$;

价格标的基础分为 75 分，投标价比评标基准价(综合标底价)超出 0~5%，每高于 1%从基础分中扣 1 分，超出 5%每 1%扣 2 分；低于评标基准价 0~10%，每低 1%扣 0.5 分，超出 10%每 1%扣 1 分。投标价比评标基准价(指投标有效最低价)超出 0~5%，每高于 1%从基础分中扣 1 分，超出 5%每 1%扣 2 分。

2) base price of the bid evaluation shall be calculated as follows:

set base price of the bid evaluation as "B", set the effective minimum price of the bid quotation as "D", The budgetary base price made by Party A as "E", set the average price quoted by all bidders as "F", then $B = D \times 50\% + E \times 30\% + F \times 20\% \times 95\%$ (Note: bidders' quotations exceed 1.3 times the budgetary base price approved by Party A shall not participate in the average price of bidders).

综合标底价作为评标基准价评分法：具体评标基准价采用投标报价的有效最低价*50%+经公司审批的预算标底价*30%+所有投标单位报价的平均价*20%*95%（注：投标单位报价超出经公司审批的预算标底价的 1.3 倍不参与投标单位价格平均）。（3）投标有效最低价作为评标基准价评分法，具体评标基准价采用所有投标单位报价的有效最低价；

5.2. Commercial bid (full score 5 points) 商务标（满分为 5 分）：

- 1) Providing a true and valid certificate of legal person and power of attorney of legal person according to the requirements of tender documents will get 1 point. If the power of attorney is not standardized, it cannot be separated.

投标人资格：按照招标文件要求提供真实有效的法人证明及法人授权委托书得 1 分，授权委托书不规范的不得分。

- 2) Bidder's Commitment: Complete Response to the Requirements of Bidding Documents and Submission of the Commitment to Insurance shall be one point, and the Commitment to Insurance shall be one point. Non-scoring of non-standard commitment. 投标人承诺：按照招标文件要求完全响应并提交投保承诺书得 1 分，投保承诺书不规范的不得分。

- 3) Party B Qualifications: 1 point for a Party B whose qualifications meet or exceed the minimum qualification requirements for a bidding project.

投标人资质：投标人资质满足或超出招标项目最低资质要求的得 1 分。

- 4) Party B performance: Bidders provide 1 point for performance of the same or similar projects in the past two years. No score if not provided.

投标人业绩：投标人提供近 2 年内相同或类似项目履约业绩的得 1 分。未提供的不得分。

- 5) Party B deviation: Bidders who do not submit deviations from tender documents get 1 point. Otherwise, there is no score.

投标人未提出与招标文件偏差得 1 分，提出偏差不得分。

5.3. technical bid (full score 20 points) 技术标（满分 20 分）：

- 1) Normative tender documents (price, commercial and technical tender documents meet the requirements of tendering, and authorized signature and seal are fully valid) have a full score of 2 points.

投标文件规范性（价格标、商务标及技术标投标文件符合招标要求，授权人签字盖章全面有效）满分为 2 分。

- 2) The conformity of bidding documents is 1 point, and the content of technical bidding documents conforms to the characteristics of bidding projects. 投标文件符合性，满分为 1 分，技术标投标文件内容符合招标项目特征。

- 3) Construction deployment and site planning, with a full score of 2 points.

施工部署及现场平面规划，满分为 2 分。

- 4) Construction organization plan and construction progress plan (including the composition of members of construction management organization or project management department, the division of construction section, main procedures and labor arrangement plan etc.) are divided into 5 points.

施工组织方案及施工进度计划（包括施工管理机构或项目经理部成员组成、施工段的划分、主要工序及劳动力安排计划等），满分为 5 分。

- 5) Living and construction temporary construction arrangements, full score of 1.

生活及施工临建安排方案，满分为 1 分。

- 6) Construction machinery and equipment allocation and access plan, full score of 1.

施工机械设备配备及进场计划情况，满分为 1 分。

- 7) Time limit guarantee measures, full score of 2 points.

工期保证措施，满分为 2 分。

- 8) Quality and process control measures, full score of 2 points.

质量及工艺控制措施，满分为 2 分。

- 9) Safe and civilized construction measures, with a full score of 2 points.

安全、文明施工措施，满分为 2 分。

- 10) Assessment and control measures of A-supply resources, with a full score of 2 points. 甲供资源考核控制措施，满分为 2 分。

Score form of Bid Evaluation

评标计分表

Project name: 工程名称:

base price of bidding: 标底金额:

评分项目 Item	基础分 Base score	评分原则 Bidding evaluation rules	投标单位 A Party BA	投标单位 B Party BB	...
一: 价格标 Price bid	$\Sigma=75$	评标基准价对比投标价, 偏差部分根据计算规则进行客观评分。Comparing the bid evaluation benchmark price with the bid price, the deviation part is objectively scored according to the calculation rules.			
二: 商务标 Commercial bid	$\Sigma=5$	投标人资格 (1 分) Party B qualification (1 point)			
		投标人承诺 (1 分) Party B commitment (1 point)			
		投标人资质 (1 分) Party B credentials (1 point)			
		投标人业绩 (1 分) Party B performance (1 point)			
		投标偏差 (1 分) Bidding deviation (1 point)			
三: 技术标 technical bid	$\Sigma=20$	投标文件规范性(2 分) Standardization of tender documents (2 points)			
		投标文件符合性(1 分) Compliance with tender documents (1 point)			
		施工部署及现场平面规划 (2 分) Construction Deployment and Site Planning (2 points)			
		施工组织方案及施工进度计划(5 分) Construction Organization Scheme and Construction Schedule Plan(5 points)			
		生活及施工临建规划方案(1 分) Planning Scheme for Living and Construction Projects (1 point)			
		施工机械设备配备及进场计划(1 分) Equipment of Construction Machinery and Equipment and Entry Plan (1 point)			
		工期保证措施(2 分) Duration Guarantee Measures (2 points)			
		质量及工艺控制措施 (2 分)Quality and process control measures (2 points)			

评 分 项 目 Item	基础分 Base score	评分原则 Bidding evaluation rules	投标 单 位 A Party BA	投标 单 位 B Party BB	...
		安全文明施工措施(2 分)Safety and civilized construction measures (2 points)			
		甲供资源考核控制措施(2 分)Assessment and control measures of A-supply resources (2 points)			
总计Σ TotalΣ	100				
评标委员会成员签名 Signatures of members of the bid evaluation committee:					

说明：评标人员不得少于五人（技术商务专家不少于 2/3），500 万元以上项目不得少于 7 人。
 Note: No fewer than five bidders (not less than two-thirds of technical and business experts) and no fewer than seven bidders for projects with more than 5 million yuan.

6. Contract Award 定标及授予合同

6.1. Letter of Pre-Bid Winning 预中标通知书

- 6.1.1 The Tenderer will issue the letter of Pre-Bid Winning , informing the pre-bid winner that its bid has been accepted. After receiving the letter of Pre-Bid winning, the winner will commence the contract negotiation and sign the contract with the Tenderer within 3 working days.

招标单位将在中能建招标采购平台上通过电子方式（必要时通过书面形式）向中标单位发布《预中标通知书》，通知预中标单位其投标被接受，中标人收到预中标通知书后，在 3 个工作日内与招标方开始合同谈判及签订合同。

- 6.1.2 After the successful Bidder is determined, the Tenderer will inform all unsuccessful Bidders of the evaluation results, but will not make any explanation for the bid evaluation process and the reason of their failure to win the bid, and the Bidder shall not ask the members of the bid evaluation committee or other relevant personnel for the information and data of the bid evaluation process.

中标人确定后，招标方将预中标结果通知所有未中标的投标方，但不对未中标人就评标过程以及未能中标原因作出任何解释，投标方不得向评标委员会成员或其他有关人员索问评标过程的情况和材料。

- 6.1.3 The letter of pre-Bid Winning shall be an integral part of the bidding file and the contract.

预中标通知书是招标投标档案和合同的组成部分。

- 6.1.4 The letter of pre-bid winning shall have legal binding force on the Tenderer and the bid winner. After the letter of pre-bid winning issued, if the Tenderer changes the bid winning result or the bid winner waives the bid winning, it shall bear legal responsibility.

预中标通知书对招标方和中标人具有法律约束力。预中标通知书发出后，招标方改变中标结果或者中标人放弃中标的，应当承担法律责任。

6.2. Signing of contract agreement 合同协议书的签署

- 6.2.1 After receiving the letter of pre-bid winning, the legal representative or authorized representative of the pre- bid winning company shall negotiate the contract with the Tenderer within the specified time and sign the contract according to requirement of the letter of pre-bid winning. The Tenderer and the winner will not enter into any other agreement that is against the substantive content of the contract.

预中标单位接到预中标通知后，在规定时间内，由其法定代表人或授权代表与招标单位进行合同谈判及在中标通知中载明签订书面合同的时间地点签订合同，招标方与中标人不再订立背离合同实质性内容的其他协议

- 6.2.2 If the bid winner fails to sign the contract within the time specified in the letter of pre-bid winning, The Tenderer has the right to cancel the bid winning qualification and confiscate the bid security/bond; the Bidder reserves the right to claim the

economic losses caused by the bid winner (the delay of construction period caused by the re-bid).

由于中标人原因，未在中标通知规定时间内签订合同，招标方有权取消其中标资格，没收投标保证金；投标方保留对中标人（由于重新确定中标人造成的工期延误等）导致经济损失的追偿权利。

- 6.2.3 The conditions for the effectiveness of the contract are: the legal representatives or authorized representatives of both parties sign and affix the official seals of both parties. Within 15 working days after signing the contract between the Tenderer and the successful Bidder, the Tenderer shall return the bid bond to the successful Bidder after the successful Bidder submits the performance security in accordance with the instructions. The Contract between the Owner and Tender have been effect.

合同生效的条件为：招、投标双方法定代表人或授权代表签字并加盖双方公章。招标方与中标人签订合同后 15 个工作日内，在中标人按照本须知的规定提交履约担保后，招标方向中标人退还投标保证金。招标人与业主所签订的主合同生效

6.3. Performance guarantee 履约担保

- 6.3.1 After receiving the letter of pre-Bid Winning from the Tenderer, the winning Bidder shall submit the performance security to the Tenderer in the form of performance security bank guarantee provided in the Tender Document or other forms acceptable to the Tenderer in accordance with the provisions of the contract.

中标人在收到招标方的中标通知书后，应按照合同条款的规定，采用招标文件中提供的履约保证金银行保函格式或买方可以接受的其他形式向买方提交履约保证金。

- 6.3.2 If the successful Bidder fails to submit the performance security as required, the Tenderer will have sufficient reasons to consider abandoning the bid and confiscate its bid security. In this case, the Tenderer may award the contract to the next winner candidate or re-bid. The Bidder reserves the right to claim the economic losses caused by the successful Bidder).

如果中标人没有按规定提交履约保证金，招标方将有充分的理由视为放弃中标，其投标保证金不予退还。在此情况下，招标方可将合同授予下一个中标候选人，或重新招标。投标方保留对中标人（由于重新招标或者重新确定中标人造成的工期延误等）导致经济损失的追偿权利。

7. Re-bid 重新招标

In case of any case occurs as following, the Tenderer has the right to Re-bid or select the winner by other means:

有下列情形之一的，招标人有权决定重新招标或采取其它的方式选择投标人：

- 7.1 There are less than 3 valid Bidding document up to the deadline of bidding document submission;
投标截止时间止，有效投标人少于 3 个的；
- 7.2 All Bidders are rejected after bid elevation;
经评审委员会评审后否决所有投标人的；

- 7.3 All Bidder's quotations are higher than the approved budget, and the Tenderer is unable to adjust the budget;
所有投标人报价均高于招标项目可用预算的，且招标单位无法调整预算时；
- 7.4 The bid winner of the project fails to sign the contract with the Tenderer and the Tenderer has to select other bidders as winner .
项目中标人未能与招标人最终签订合同而需重新确定中标人的。
- 7.5 Provided any case as mentioned above occurs , the Tenderer will notify to the Bidder within 15 days after the deadline of previous bidding document submission about re-bidding and further arrangements. If the bid security shall be refunded.
如出现以上情况，招标人将在投标截止时间后 15 天内，向投标人发出通知，确定重新招标时间和进一步的安排。如招标人确定招标失败而不再招标，则退还投标保证金本金。

8. Discipline and Supervise 纪律与监督

- 8.1 The documents and materials submitted by the Bidder on qualification, business status, performance, etc. must be true, reliable and accurate, and shall not be forged or tampered with.
投标人所提交的关于资质、经营状况、业绩等文件和材料，必须真实、可靠、准确，不得伪造、篡改。
- 8.2 The Bidders shall not collude with each other in bidding, crowd out the fair competition of other Bidders, damage the legitimate rights and interests of the Tenderer or other Bidders, interfere with the Tenderer's correct judgment, investigate and collect the bid evaluation information in any form, and interfere with the bid evaluation work.
投标人不得相互串通投标价，不得排挤其他投标人的公平竞争，损害招标人或者其他投标人的合法权益；不得干扰招标人做出正确判断；不得以任何形式打探和搜集评标情况，干扰评标工作。
- 8.3 A Bidder may not bid at a price lower than the cost, or in the name of another person, or in any other way falsify his bid.
投标人不得以低于成本的报价竞标，也不得以他人的名义投标或者以其它方式弄虚作假，骗取中标。
- 8.4 A Bidder may not collude with the Tenderer in bidding to damage the interests of the state, the public or others. It is forbidden for Bidders to bribe the Tenderer or members of the expert group to win the bid.
投标人不得与招标人串通投标，损害国家利益，社会公共利益或者他人利益。禁止投标人向招标人或者专家组成员以行贿的手段谋取中标。
- 8.5 It is strictly forbidden for the Bidder to contact with the bidding and evaluation personnel in private.
严禁投标人与招标、评标工作人员私下接触。
- 8.6 The normal liaison between the Tenderer and the Bidder and the transmission of relevant documents and data shall be conducted through the secretary group according to the meeting requirements.
投标人与招标人之间的正常联络及有关文件、资料的传递，应按会议要求通过秘书组进行。

- 8.7 If the Bidder violates the above provisions, the Tenderer has the right to cancel its qualification to participate in the bidding. If it causes losses to others, it shall be liable for compensation according to law, and the Bidder shall be dealt with according to the supplier blacklist management regulations depending on the seriousness of the case.

投标人如违反上述有关规定，招标人有权取消其参与投标的资格，对给他人造成损失的，依法承担赔偿责任，并视情节严重情况，将投标人按照供应商黑名单管理规定处理。